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Georgia Record Restriction & Sealing Agent Training Reference

A complete operational knowledge base for clearing criminal records in Georgia: the restriction-then-sealing two-step, the Second Chance Act conviction restriction, eligibility, waiting periods, excluded offenses, procedure, and record requests.

Prepared for	LegalEase / Expungement.ai — Wilma assistant
Coverage	State of Georgia (GBI/GCIC for restriction; Superior Court of the county for sealing/petitions)
Primary statute	O.C.G.A. § 35-3-37 (record restriction, sealing, and the "J" petition types)
Controlling law	Second Chance Act — SB 288 (2020), effective January 1, 2021; auto-restriction § 35-3-37(j.1) (2021)
Document type	Internal training / retrieval reference — not legal advice
Currency	Reflects law as of mid-2026, post SB 288 and the 2021 automatic-restriction amendment

VERIFY BEFORE RELYING

Georgia does not use the word "expungement" in its statute, and the difference is substantive. The remedy is **RECORD RESTRICTION** (limiting who can see the record) plus, as a separate second step, **SEALING** of the clerk of court's file by court order. Neither destroys the record. The agent must not tell a user their record will be "expunged" or erased; the accurate framing is restricted and sealed, with the record still available to criminal justice agencies. Eligibility also turns on the July 1, 2013 arrest-date dividing line and on whether the prosecutor approves — verify both.

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How the agent should use this document

Georgia's system has a structure unlike the other states. First, the remedy is two steps: **record restriction** (hiding the record from public/background-check view, handled through the GBI/GCIC and the prosecutor) and then **sealing** of the clerk of court's file (a separate court order). A record must be restricted before the court file can be sealed. Second, everything turns on the **disposition** and the **July 1, 2013 arrest date**: non-convictions are the main path, and SB 288 (2021) added a narrow conviction path. The agent should always (1) determine conviction vs. non-conviction; (2) for non-convictions, check the pre/post-July-2013 process; (3) for convictions, check the SB 288 two-misdemeanor limit or the pardoned-felony path; (4) screen the excluded-offense list; and (5) remember sealing the court file is a separate step.

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Statutory shorthand used throughout

O.C.G.A. § 35-3-37	Record restriction, sealing, and the petition framework
§ 35-3-37(h)	Restriction of non-conviction arrest records (the core mechanism)
§ 35-3-37(j.1)	AUTOMATIC restriction of certain non-conviction records (2021)
§ 35-3-37(j)(4)	SB 288 misdemeanor-conviction restriction (up to two, lifetime) + excluded list
§ 35-3-37(j)(7)	Pardoned-felony restriction path
§ 35-3-37(m)	Sealing of the clerk of court's record by court order
SB 288 (2020)	Second Chance Act — added conviction restriction, eff. Jan 1, 2021
GCIC / GBI	Georgia Crime Information Center / Bureau of Investigation — hold the criminal history

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1. Eligibility rules

Restriction (and then sealing) is available along several pathways. The agent routes by disposition first.

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Pathway 1 — Non-conviction records (the core path, § 35-3-37(h))

Charges that did not result in a conviction are the primary eligible category: dismissed, nolle prossed/prosequi, not presented to the grand jury, no further action anticipated, dead docketed (for the required period), acquittal, or completion of a pretrial diversion program. Whether action is required depends on the arrest date:

- **Arrests on or after July 1, 2013:** generally restricted automatically when the clerk or prosecutor enters the qualifying disposition into the GCIC database — no application process; the person may contact the prosecutor to confirm.
- **Arrests before July 1, 2013:** the person must apply for restriction through the arresting agency using the GBI Request to Restrict Arrest Record form, with prosecutor approval.
- **Automatic restriction (§ 35-3-37(j.1), 2021):** certain non-conviction records are restricted automatically without any request.

Pathway 2 — Misdemeanor convictions under SB 288 (§ 35-3-37(j)(4))

Since January 1, 2021, a person may petition the court to restrict and seal up to **two misdemeanor convictions in a lifetime**, provided all sentence terms are complete, the person has no convictions for at least four years before filing, has no pending charges, and the offense is not on the excluded list (Section 3). Grant is discretionary on an interests-of-justice showing.

Pathway 3 — Pardoned felonies (§ 35-3-37(j)(7))

A felony conviction that has been pardoned by the Georgia State Board of Pardons and Paroles may be restricted if the person has not been convicted of a new offense (other than a non-serious traffic offense) since the pardon and has no pending charges. This is one of the few routes to restrict a felony conviction.

Pathway 4 — Youthful / first-offender and related routes

Misdemeanors committed before age 21 (with exceptions for serious traffic, sexual, and certain other offenses) have long been restrictable, and retroactive First Offender treatment (O.C.G.A. § 42-8-66) can in some cases convert a conviction into a first-offender discharge that is then restrictable.

The separate sealing step (§ 35-3-37(m))

Restriction hides the record in the GCIC criminal-history system, but the clerk of court's file remains a public court record. To close that, the person files a motion/petition to seal the clerk's record under § 35-3-37(m). Restriction must occur first; sealing is the second step.

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AGENT GUIDANCE

Route by disposition: non-conviction → restriction (automatic post-2013, or by application pre-2013); misdemeanor conviction → SB 288 petition (mind the two-in-a-lifetime cap); felony → generally only via pardon, then § 35-3-37(j)(7).

Always treat sealing of the court file as a distinct second step. Telling a user their record is 'restricted' is not the same as the court file being sealed — explain both.

2. Waiting periods

For SB 288 conviction restriction, the clock runs from **completion of the sentence** — all jail time served and probation terminated. Non-conviction restriction generally has no waiting period.

Pathway / matter	Remedy	Waiting period	Notes
Non-conviction (dismissed, nolle prosequi, acquittal)	Restrict	None	Automatic if arrest ≥ 7/1/2013
Dead docket	Restrict	Required period on dead docket	Then eligible
Pretrial diversion completed	Restrict	On completion	Program successfully completed
Misdemeanor conviction (SB 288)	Restrict + seal	4 years since sentence complete	Plus 4 yrs conviction-free, no pending charges
Pardoned felony	Restrict	After pardon	No new offense since pardon
Misdemeanor before age 21	Restrict	Per statute	Exceptions for serious offenses

The SB 288 conditions stack: a person must (1) have completed all terms of the sentence; (2) have no convictions for at least four years before filing; and (3) have no pending charges. The four-year window is measured backward from the filing date and is broken by any intervening conviction, so a new offense resets the clock. The two-misdemeanor cap is a lifetime limit, not per-filing — a person who has already restricted two misdemeanor convictions cannot restrict a third.

AGENT GUIDANCE

For SB 288, confirm sentence completion (jail done AND probation terminated), four conviction-free years, and no pending charges before indicating eligibility. A later conviction resets the four-year clock. Track the lifetime two-misdemeanor cap; ask whether the user has previously restricted any conviction before promising a new one is possible.

3. Disqualifying / excluded offenses

For SB 288 misdemeanor-conviction restriction, § 35-3-37(j)(4) excludes a specific list of misdemeanors. A conviction for any of the following generally cannot be restricted, regardless of time elapsed:

- **DUI** and all other serious traffic offenses under O.C.G.A. §§ 40-6-390 through 40-6-397 (e.g., reckless driving, fleeing).
- **Family violence** simple assault, simple battery, and battery under §§ 16-5-20(d), 16-5-23(f), 16-5-23.1(f) — unless the person was under 21 at the time of the arrest.
- **Theft** offenses under Chapter 8 of Title 16 — except theft by shoplifting and refund fraud, which can be restricted.
- **Sexual offenses**, including sexual battery, public indecency, and related crimes.
- **Crimes against children / family**, including certain child-related and exploitation offenses.
- Offenses involving **serious injury or endangerment** as enumerated in the statute.

Other categorical limits

- **Two-misdemeanor lifetime cap.** No more than two misdemeanor convictions may ever be restricted under SB 288.
- **Felony convictions** generally cannot be restricted except through a pardon (§ 35-3-37(j)(7)) or retroactive first-offender treatment.
- **Pending charges / new convictions** disqualify, and a new conviction can undo eligibility and reset the four-year clock.
- **Plea-bargain dismissals.** A charge dismissed as part of a plea to another charge arising from the same conduct is not restrictable.
- **Out-of-state / federal records** are not reachable by Georgia restriction.

VERIFY BEFORE RELYING

The § 35-3-37(j)(4) excluded list is specific and the family-violence and theft carve-outs (under-21 exception; shoplifting/refund-fraud inclusion) turn on the exact O.C.G.A. section and facts. The agent must map the user's actual offense to its Code section and verify against the current excluded list before declaring a misdemeanor eligible — the offense label alone is not enough.

AGENT GUIDANCE

DUI and theft are the two most common disqualifiers users misjudge: DUI is categorically excluded, and most theft is excluded EXCEPT shoplifting and refund fraud. Check the precise offense. For family-violence misdemeanors, the under-21-at-arrest exception is the only opening — confirm age at arrest before ruling it in or out.

4. Case outcome rules

Disposition determines the pathway, whether action is needed, and who decides. This table is the agent's primary routing logic for Georgia.

Case outcome	Pathway	Route / who decides	Condition
Dismissed / nolle prosequi / acquitted (≥ 7/1/2013)	§ 35-3-37(h)	Automatic via GCIC entry	Qualifying disposition entered
Non-conviction (arrest < 7/1/2013)	§ 35-3-37(h)	Apply at arresting agency; prosecutor approves	GBI Request to Restrict form
Auto-restriction category	§ 35-3-37(j.1)	Automatic, no request	Statute-specified records
Pretrial diversion done	§ 35-3-37(h)	Restriction on completion	Program completed
Misdemeanor conviction	§ 35-3-37(j)(4)	Petition to court; prosecutor 90-day objection	4 yrs; ≤ 2 lifetime; eligible
Pardoned felony	§ 35-3-37(j)(7)	Petition to court	No new offense since pardon
Excluded offense (Sec. 3)	—	Not restrictable	Pardon / first-offender only

On a SB 288 petition, the prosecuting attorney has **90 days** to object; if there is no objection the court may grant without a hearing, and if the prosecutor objects the court holds an interests-of-justice hearing. For non-conviction applications denied by the prosecutor, the person may appeal to the Superior Court within **30 days**. The effect of relief: a restricted record does not appear on a GCIC background check seen by employers, landlords, or the general public, and the person may state the record does not exist; but criminal justice agencies retain access, and the clerk's court file stays public until separately sealed under § 35-3-37(m).

AGENT GUIDANCE

Tell users plainly: restriction hides the record from background checks but does not erase it, and the court file remains public until sealed in the separate § 35-3-37(m) step.

Flag the decision-maker: non-conviction restriction runs through the prosecutor/GCIC; SB 288 conviction restriction runs through the court with a 90-day prosecutor objection window.

5. Required forms

Georgia uses a mix of a GBI agency form (for non-conviction restriction) and court petitions (for SB 288 conviction restriction and for sealing). The agent picks by pathway.

Non-conviction restriction — GBI form

- **Request to Restrict Arrest Record** — the GBI/GCIC application (used mainly for pre-July-2013 arrests, or to correct a record that was not auto-restricted). Section Three is completed by the prosecutor.
- For post-July-2013 arrests, no form is needed if the qualifying disposition was entered into GCIC; the person contacts the prosecutor to confirm.

SB 288 misdemeanor-conviction restriction — court petition

- **Petition for Record Restriction and Sealing** filed in the Superior (or State) Court of the county of conviction, citing § 35-3-37(j)(4), with a proposed order.
- Attach the GCIC criminal history and proof that the sentence is complete and the four-year window is satisfied.
- Serve the prosecuting attorney, who has 90 days to object.

Sealing the clerk's file — separate motion

- **Motion/Petition to Seal Court Records** under § 35-3-37(m), filed after restriction, asking the court to seal the clerk of court's file with a proposed sealing order.

AGENT GUIDANCE

Pick by pathway: GBI Request to Restrict for non-conviction (esp. pre-2013); a § 35-3-37(j)(4) court petition for SB 288 misdemeanors; a § 35-3-37(m) motion to seal the court file as the second step. Always attach a current GCIC criminal history to a court petition, and pair each petition with a proposed order the judge can sign.

6. Filing / application instructions

Two distinct processes depending on pathway.

A. Non-conviction restriction (agency/prosecutor process)

- 1 Obtain and review your GCIC criminal history to confirm each charge has a final, qualifying disposition.
- 2 If the arrest was before July 1, 2013, get the Request to Restrict Arrest Record form from the arresting agency; if on/after July 1, 2013, contact the prosecutor to confirm automatic restriction.
- 3 Submit the application to the arresting agency / prosecutor; the prosecutor completes Section Three (approve or deny).
- 4 If approved, the prosecutor enters the restriction code in the GCIC CCH interface, or the approved application plus the GCIC processing fee is forwarded to GCIC.
- 5 GCIC processes complete applications (typically 2–3 weeks) and mails a completion letter. If the prosecutor denies, appeal to the Superior Court within 30 days.

B. SB 288 conviction restriction (court process)

- 1 Confirm eligibility: sentence complete, four conviction-free years, no pending charges, not an excluded offense, and within the two-misdemeanor lifetime cap.
- 2 Prepare a Petition for Record Restriction and Sealing citing § 35-3-37(j)(4), attaching the GCIC history and proof of completion, plus a proposed order.
- 3 File in the Superior/State Court of the county of conviction and pay the filing fee (county-set).
- 4 Serve the prosecuting attorney, who has 90 days to object; if unopposed, the court may grant on the papers, otherwise it holds an interests-of-justice hearing.
- 5 If granted, the court orders GCIC and the arresting agency to restrict; then file the separate § 35-3-37(m) motion to seal the clerk's court file.

AGENT GUIDANCE

Identify the arrest date early — the July 1, 2013 line decides whether non-conviction restriction is automatic or application-based.

For convictions, remember it is a two-step finish: court-ordered restriction, then a separate motion to seal the clerk's file. Don't stop at restriction if the user wants the court record closed too.

7. Court- and agency-specific quirks

- **Two remedies, two venues.** Restriction runs through the GBI/GCIC and the prosecutor; sealing the court file runs through the Superior/State Court. They are sequential, not interchangeable.
- **The July 1, 2013 line.** Non-conviction arrests on/after that date are generally restricted automatically via GCIC entry; earlier arrests require an application at the arresting agency.
- **Prosecutor is the gatekeeper for non-convictions.** The prosecuting attorney approves or denies restriction (Section Three of the GBI form); denials are appealable to Superior Court within 30 days.
- **90-day objection on SB 288 petitions.** The court process gives the prosecutor 90 days to object before the court may grant unopposed.
- **Two-misdemeanor lifetime cap** is unusual and easy to overlook — it is not per-petition.
- **DUI and most theft excluded,** but theft by shoplifting and refund fraud are carve-ins, and family-violence misdemeanors are restrictable only if the person was under 21 at arrest.
- **Felonies need a pardon.** Outside retroactive first-offender treatment, a felony conviction is restrictable only after a Board of Pardons and Paroles pardon.
- **County fee variation.** Court filing fees for petitions vary by county; the GCIC charges a separate processing fee for restriction applications.

AGENT GUIDANCE

Pin down arrest date and disposition first; they determine venue, process, and whether anything needs to be filed at all.

For excluded offenses and felonies, set expectations honestly: the realistic route is a pardon or retroactive first-offender, both separate and slower than a restriction application.

8. Fee information

Item	Amount	Note
GCIC restriction processing fee	Set by GCIC	Per application; payable to GBI by money order/certified check
Automatic restriction ($\geq$ 7/1/2013)	\$0	No application, no fee
SB 288 court petition filing fee	~\$50–\$250	Varies by county; per petition
GCIC criminal history report	Fee set by GCIC	To review the record before applying
Attorney fees (if represented)	Varies	Not required; Georgia Justice Project offers free help to eligible people
Board of Pardons application	Varies	Only for the pardon route to a felony

The cost depends entirely on pathway. Automatic non-conviction restriction (post-July-2013) costs nothing. A pre-2013 non-conviction application carries the GCIC processing fee. An SB 288 conviction petition carries a county-set court filing fee, generally in the \$50–\$250 range. The Georgia Justice Project provides free representation to eligible people who cannot afford an attorney.

AGENT GUIDANCE

Lead with the free path: if a non-conviction arrest is post-July-2013, restriction should be automatic at no cost — the user mainly needs to confirm via their GCIC history.

Quote SB 288 petition fees as a county-dependent range, and point low-income users to the Georgia Justice Project (404-827-... helpline) for free help.

9. Criminal history (GCIC) request process

Reviewing the criminal history first is essential — it confirms each charge has a final qualifying disposition and reveals whether automatic restriction already occurred.

A. Statewide history — GBI / Georgia Crime Information Center (GCIC)

- GCIC maintains the Georgia criminal history; a report can be obtained for a fee and is the authoritative source for dispositions and restriction status.
- Confirm that every charge shows a final disposition and that qualifying non-convictions are (or can be) restricted; if a disposition is missing, contact the court to transmit it.

B. Court records — county Clerk of Court

- The Clerk of the Superior/State Court of the county holds the case file; this is the record that the separate § 35-3-37(m) sealing step addresses.

C. Federal — FBI Identity History Summary

- For records that may extend beyond Georgia, the FBI fingerprint-based Identity History Summary is the federal equivalent; Georgia restriction reaches Georgia records only.

VERIFY BEFORE RELYING

GCIC request methods and fees can change. The agent should verify the current GBI/GCIC criminal-history request process and fee at the time of advising rather than quoting a fixed figure from memory.

AGENT GUIDANCE

Frame the GCIC criminal history as step one for every Georgia matter — it confirms dispositions and whether automatic restriction already happened. Direct users to GCIC for the history and the county Clerk of Court for the case file.

10. Sample applications and completed examples

Georgia uses an agency form for non-conviction restriction and court petitions for SB 288 convictions and sealing. The examples below show structure and key recitals. Names, dates, and identifiers are fictional and illustrative.

Example A — Request to Restrict Arrest Record (non-conviction, § 35-3-37(h))

GEORGIA BUREAU OF INVESTIGATION — GEORGIA CRIME INFORMATION CENTER
REQUEST TO RESTRICT ARREST RECORD (O.C.G.A. 35-3-37)

Applicant: Andre L. Carter DOB: 07/22/1992
Arresting agency: Fulton County Police Arrest date: 03/02/2012
Charge: Possession of marijuana (misdemeanor)
Disposition: Nolle prosequi, 08/15/2012 (NON-CONVICTION)
Section 1 (applicant): I request that the above arrest record be restricted from public access pursuant to O.C.G.A. 35-3-37.
Section 3 (prosecutor): ☐ Approved ☐ Denied _____
Note: arrest predates 7/1/2013, so an application to the arresting agency with prosecutor approval is required (post-7/1/2013 arrests are restricted automatically via GCIC entry). GCIC processing fee enclosed. After restriction, a separate 35-3-37(m) motion may be filed to seal the clerk of court's file.

Example B — Petition for Record Restriction and Sealing (SB 288, § 35-3-37(j)(4))

IN THE SUPERIOR COURT OF FULTON COUNTY, STATE OF GEORGIA
IN RE: ANDRE L. CARTER Case No. 2026-CV-001234

PETITION FOR RECORD RESTRICTION AND SEALING (O.C.G.A. 35-3-37(j)(4))
1. Petitioner was convicted of theft by shoplifting (misdemeanor) on 03/14/2019 in this Court.
2. Petitioner completed all terms of the sentence (jail served and probation terminated) on 03/14/2021.
3. More than four (4) years have passed and Petitioner has not been convicted of any offense in that period and has no pending charges.
4. This is not an excluded offense: theft by shoplifting is expressly restrictable, and Petitioner has not previously restricted two misdemeanor convictions.
5. Restriction and sealing serve the interests of justice: the harm to Petitioner outweighs the public interest in access.
WHEREFORE Petitioner requests an order directing GCIC and the arresting agency to RESTRICT this conviction and SEALING of the clerk's record under 35-3-37(m). GCIC history attached.
Served on the District Attorney (90 days to object).

Examples C & D — Other pathways

C. AUTOMATIC RESTRICTION (≥ 7/1/2013 non-conviction):
A 2020 charge dismissed/nolle prossed is restricted automatically when the clerk or prosecutor enters the disposition into GCIC. No application needed; confirm via the GCIC criminal history. A 35-3-37(m) sealing motion can still be filed to close the clerk's court file.

D. PARDONED FELONY (§ 35-3-37(j)(7)):

A felony conviction pardoned by the State Board of Pardons and Paroles may be restricted by petition if there is no new offense since the pardon and no pending charges – one of the few routes to restrict a Georgia felony conviction.

Proposed Order (court pathways)

Each court petition is accompanied by a proposed Order reciting the caption and directing the Georgia Crime Information Center and the arresting agency to restrict the record under § 35-3-37, and, where sought, ordering the Clerk of Court to seal the case file under § 35-3-37(m).

This reference is an internal training and retrieval aid for the Wilma assistant. It summarizes Georgia statutes and common practice and is not legal advice. Georgia law changed under SB 288 and the 2021 automatic-restriction amendment; the agent must verify the current text of O.C.G.A. § 35-3-37, the § (j)(4) excluded-offense list, GCIC request procedures, county filing specifics, and the two-step restriction-then-sealing process before relying on any rule here.